



CHAPTER lxi.

An Act to transfer to and vest in the Council of the urban district of Oystermouth the undertaking of the Oystermouth and District Waterworks Company Limited to authorise the Council to maintain the existing waterworks and construct new works and to supply water within the urban district of Oystermouth and adjacent places and for other purposes.

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[18th August 1911.]

WHEREAS the district of Oystermouth in the county of Glamorgan (hereinafter called "the district") is an urban district within the meaning of the Local Government Act 1894 and is under the management and control of the Oystermouth Urban District Council (hereinafter called "the Council"):

And whereas by the Oystermouth Water Order 1879 (hereinafter called "the Order") which was confirmed by the Gas and Water Orders Confirmation Act 1879 certain persons therein named (who and whose assigns were thereby constituted the undertakers for the purposes of the Order and were therein referred to as "the undertakers") were authorised to make and maintain certain waterworks in the parishes of Oystermouth and Bishopston and to supply water within the parish of Oystermouth and that portion of the parish of Bishopston known as Herbert's Houses Herbert's Lodge Millstone Acres and Redlay all in the county of Glamorgan:

And whereas by section 6 of the Order the undertakers were authorised to raise share capital for the purposes of their undertaking not exceeding six thousand five hundred pounds

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A.D. 1911. and to borrow on mortgage of the undertaking any moneys not exceeding one thousand five hundred pounds:

And whereas the said undertaking is now vested in the Oystermouth and District Waterworks Company Limited (hereinafter called "the company"):

And whereas the capital of the company consists of six thousand five hundred pounds divided into seven hundred and thirty-one ordinary shares of five pounds each and five hundred and sixty-nine preference shares of five pounds each and the company have borrowed on mortgage or debentures the sum of one thousand five hundred pounds:

And whereas it is expedient that the control of the water supply of the district be placed in the hands of the Council and that the undertaking of the company be transferred to and vested in the Council in manner provided by this Act and the Council be authorised to supply water within the limits defined by this Act:

And whereas it is expedient that the Council be empowered to maintain and improve the existing waterworks of the company and to construct the additional waterworks by this Act authorised:

And whereas the lands forming the sites of the company's existing pumping stations at Caswell Bay and easements for maintaining certain conduits or lines of pipes from the company's springs on the west side of Caswell Bay to their existing pumping stations and from the said pumping stations to the rising main in the public road leading from Caswell Bay to Oystermouth are held on lease from His Grace the Duke of Beaufort and it is expedient that the Council be empowered to purchase and take the reversion in the said lands and easements:

And whereas it is expedient that the Council be enabled to raise moneys for the purposes of this Act:

And whereas plans and sections showing the lines and levels of the proposed waterworks and the lands to be taken and used for the purposes of this Act with a book of reference to such plans containing the names of the owners or reputed owners lessees or reputed lessees and of the occupiers of those lands respectively have been duly deposited with the clerk of the peace for the county of Glamorgan which plans sections and book of

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reference are hereinafter referred to respectively as “ the deposited plans sections and book of reference ” : A.D. 1911.

And whereas it is expedient that such other provisions as are contained in this Act be made in regard to the supply of water by the Council :

And whereas estimates have been prepared by the Council for the purchase of lands and for the execution of the works authorised by this Act and such estimates are as follows :—

For the purchase of lands and for the construction of the waterworks by this Act authorised the sum of four thousand six hundred and fifty pounds ;

For the extension and improvement of the waterworks undertaking the sum of two thousand eight hundred pounds ;

For providing fittings and working capital the sum of one thousand pounds :

And whereas the several works included in such estimates are permanent works and it is expedient that the cost thereof should be spread over a term of years :

And whereas the objects of this Act cannot be attained without the authority of Parliament :

And whereas an absolute majority of the whole number of the Council at a meeting held on the ninth day of December one thousand nine hundred and ten after ten clear days' notice by public advertisement of such meeting and of the purpose thereof in the *Mumbles Weekly Press* being a local newspaper circulating in the district such notice being in addition to the ordinary notices required for summoning such meeting resolved that the expense in relation to promoting the Bill for this Act should be charged on the revenue of the water undertaking and the district fund and general district rate of the district :

And whereas such resolution was published twice in the said *Mumbles Weekly Press* and has received the approval of the Local Government Board :

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the Council at a further special meeting of the Council held in pursuance of a similar notice on the sixth day of January one thousand nine hundred and eleven being not less than fourteen days after the deposit of the Bill in Parliament :

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And whereas in relation to the promotion of the Bill for this Act the requirements contained in the First Schedule to the Borough Funds Act 1903 have been observed :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

PRELIMINARY.

Short title.

1. This Act may be cited as the Oystermouth Urban District Council (*Water*) Act 1911.

Incorporation of Acts.

2. The following Acts and parts of Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act (namely) :—

(1) The Waterworks Clauses Acts 1847 and 1863 except—

(A) The words “with the consent in writing of the owner or reputed owner of any such house or of the agent of such owner” in section 44 of the Waterworks Clauses Act 1847 ;

(B) Sections 75 to 82 of the Waterworks Clauses Act 1847 with respect to the amount of profit to be received by the undertakers when the waterworks are carried on for their benefit and section 83 relating to accounts :

(2) The Lands Clauses Acts except section 127 of the Lands Clauses Consolidation Act 1845.

Interpretation.

3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith shall have the same respective meanings unless there be something in the subject or context repugnant to such construction and for the purposes of this Act the expressions “the undertakers” and “the promoters of the undertaking” in the said Acts mean respectively “the Council” And in this Act—

“The district fund” and “the general district rate” mean respectively the district fund and the general district rate of the district ;

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“The limits of supply” means the limits within which the Council are authorised by this Act to supply water; A.D. 1911.
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“The undertaking of the company” means all the water-works pumping stations plant engines apparatus mains pipes and works and all books accounts maps and documents in the possession of the company and all property real and personal rights and easements of the company as the same respectively shall exist on the appointed day as hereinafter defined and all powers authorities and privileges enjoyed or exerciseable by the company and also all contracts and benefits of or liabilities under contracts subsisting on that date but excepting all unfixed pipes fittings stock-in-trade fuel and other stores subsisting at the date of transfer;

“The water undertaking” means the undertaking acquired and established by the Council by virtue of this Act and all extensions thereof;

“The appointed day” shall mean the thirty-first day of December one thousand nine hundred and eleven or in case the purchase price to be paid by the Council for the undertaking of the company in pursuance of this Act shall be determined by arbitration the next usual quarter day after the date of the award of such arbitrator;

“The transfer” means the transfer to and vesting in the Council of the undertaking of the company by virtue of this Act;

“Daily penalty” means a penalty for each day on which any offence is continued after conviction thereof;

“Fittings” includes pipes meters cocks ferrules valves soil-pans waterclosets baths cisterns and other apparatus used in connection with a supply of water;

“Statutory security” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local

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Loans Act 1875 but does not include annuities rent-charges or securities transferable by delivery or any securities of the Council.

Limits of
Act.

4. The limits of this Act shall be the parish and urban district of Oystermouth and the portions of the parish of Bishopston in the rural district of Gower known as Herbert's Houses Herbert's Lodge Millstone Acres and Redlay comprised in the Order and coloured blue upon a map signed in triplicate by the Right Honourable the Lord Balfour of Burleigh the Chairman of the Committee of the House of Lords to whom the Bill for this Act was referred whereof one copy has been deposited in the Parliament Office of the House of Lords one copy in the Private Bill Office of the House of Commons and one copy in the office of the clerk to the Council at The Mumbles all which said limits are situate in the county of Glamorgan.

PURCHASE OF THE COMPANY'S UNDERTAKING.

Company to
sell their
undertaking
to Council.

5.—(1) The company shall sell to the Council and the Council shall purchase the undertaking of the company freed and discharged from all debts of the company for such price being a sum in gross as may be agreed upon between the company and the Council or as failing such agreement shall be determined by arbitration in accordance with the provisions of the Lands Clauses Acts by a single arbitrator to be appointed failing agreement between the Council and the company by the Local Government Board on the application of either party.

(2) The purchase shall be completed and the purchase-money paid on the appointed day and if the purchase shall not be completed on that day the Council shall pay to the company interest at the rate of four pounds per centum per annum on the purchase-money until completion and the Council shall be entitled to all receipts from the undertaking from the appointed day until completion.

(3) On payment by the Council of the amount of purchase-money to the company or into the Bank of England under the provisions of this Act the undertaking of the company shall subject to the provisions of this Act by virtue of this Act become and shall thenceforth be transferred to and vested in the Council.

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6. The Council shall take over all unfixed pipes fittings stock-in-trade fuel and other stores subsisting at the date of the transfer belonging to the company at such price failing agreement as may be settled by a valuer to be agreed upon between the parties or failing agreement to be nominated by the President of the Institution of Civil Engineers upon the application of either party.

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Council to
purchase
moveable
goods of
company.

7. The receipt in writing of the chairman and secretary of the company for any money to be paid to the company by the Council shall effectually discharge the Council from the sum which in such receipt shall be acknowledged to have been received and from being bound to see to the application thereof and from being answerable or accountable for the loss misapplication or non-application thereof Provided that if from any cause the Council are unable to obtain such receipt from the company they may pay the money into the Bank of England in the name of the Paymaster General for and on behalf of the Supreme Court to an account to be opened in the matter of this Act and a receipt shall be given to the Council by the cashier of the said bank for the money which shall have the same effect as the receipt of the chairman and secretary of the company.

Receipt for
purchase-
money.

8. The company shall forthwith after the transfer pay and discharge their debts and liabilities in respect of mortgages debentures debenture stock and money borrowed and interest accrued due thereon and the debts outgoings and liabilities of every kind properly chargeable to revenue up to the appointed day including interest on their mortgage debt and liabilities in respect of causes of action then existing and shall be entitled to all water meter and other rents or rates and other receipts on revenue account from their undertaking up to and including that day and where necessary for the purpose of giving effect to this section such outgoings rents rates and receipts shall be apportioned between the company and the Council Provided that where any such water rents rates or other payments have been paid in advance to the Company so much of them as is attributable to any period after the appointed day shall be paid over to the Council by the company.

Company
to discharge
debts &c. up
to appointed
day.

9. Until the transfer the company shall maintain and carry on the undertaking of the company as heretofore in the ordinary

Maintenance
of under-
taking by

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company —
until trans-
fer. course of business but they shall not without the previous consent in writing of the Council under the hand of their clerk make or enter into any contract agreement or obligation except such as shall be in the ordinary course of the maintenance of the works and the proper conduct of the undertaking or expend any capital except in so far as may be necessary for the fulfilment of any subsisting contract.

Recovery of
water rates
&c. **10.** All water rates meter rents and sums of money which may be due or accruing to the company upon the date of transfer shall be payable to and may be collected and recovered by the Council in like manner as if they had become payable for the like matters supplied or done under this Act.

Pending ac-
tions against
company. **11.** If at the date of the transfer any action or proceeding or any cause of action or proceeding is pending or existing by or against the company in respect of the undertaking of the company the same shall not abate or be discontinued or in anywise be prejudicially affected by reason of the transfer of the undertaking or of anything in this Act but the same may be continued prosecuted and enforced by or against or in favour of the Council as and when it might have been continued prosecuted and enforced by or against or in favour of the company if this Act had not been passed.

Contracts
&c. of com-
pany to be
binding on
Council. **12.** Except as by this Act otherwise provided all conveyances leases deeds contracts agreements and other instruments relating to the undertaking or affecting the company in respect of the undertaking and in force at the date of the transfer shall be as binding and of as full force and effect in every respect against or in favour of the Council and may be enforced as fully and effectually as if instead of the company the Council had been a party thereto Provided that as between the company and the Council the provisions of this section and the last preceding section of this Act shall not relieve the company from any payment or liability which under the section of this Act the marginal reference to which is "Company to discharge debts &c. up to appointed day" is to be made or discharged by the company.

Books &c.
to remain
evidence. **13.** All books and documents in the possession of the company which if the transfer had not been made would have been evidence in respect of any matter for or against the company shall after the transfer be admitted in evidence in

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respect of the same or the like matters for or against the Council. A.D. 1911.

14. After the transfer the company and their officers shall at all reasonable times have access to the books of the company in the custody of the Council for the purposes of the winding-up of the company but the company shall not be compelled to hand over to the Council on before or after the transfer any private book or document relating to the company Any difference arising between the company and the Council as to the meaning and effect of this section shall be settled by arbitration under the provisions of the Arbitration Act 1889.

Company to have access to books after transfer.

15. The Order shall as from the transfer be repealed.

Repeal of Order.

WORKS AND LANDS.

16. From and after the transfer the Council may maintain and from time to time alter improve and renew or discontinue the existing works of the company.

Power to maintain &c. existing works.

17. Subject to the provisions of this Act the Council may wholly in the county of Glamorgan in the lines and situation and upon the lands delineated on the deposited plans and described in the deposited book of reference make and maintain the following works shown on the deposited plans and sections (that is to say):—

Power to take lands and make works.

Work No. 1 A tank or service reservoir in the parish of Oystermouth on the west side of and adjoining the existing service reservoir of the company situate partly on the lands of the company and partly on the enclosures numbered 437 436 and 434 on the Ordnance map (scale $\frac{1}{2500}$) 2nd edition 1899 of the said parish commencing about twenty-five feet southward from the south side of Summerland Lane and terminating at a distance of one hundred and fifty feet or thereabouts from the south side of the said lane:

Work No. 2 A conduit or line of pipes commencing in the parish of Bishopston in the existing pumping stations of the company and passing into and terminating in Work No. 1:

Work No. 3 A conduit or line of pipes in the parish of Bishopston commencing at or near the Redlay Springs of

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the company situate on the western side of Caswell Bay and terminating in the existing pumping stations of the company.

Power to
make subsi-
diary works.

18. In addition to the foregoing works the Council may upon any of the lands shown on the deposited plans and for the time being belonging to the Council make and maintain all such wells adits pipes conduits water-towers stand-pipes overflows washouts drains filters tanks banks walls fences approaches engines pumps machinery telegraphs telephones and appliances as may be necessary or convenient in connection with the waterworks belonging to the Council but nothing in this section shall exonerate the Council from any action indictment or other proceeding for nuisance in the event of any nuisance being caused or permitted by them Provided that any telegraphs or telephones made or maintained by the Council under the powers conferred by this section shall not be used in contravention of the exclusive privilege conferred upon the Postmaster-General by the Telegraph Act 1869.

Limits of
deviation.

19. In the construction of the works authorised by this Act the Council may deviate laterally to any extent not exceeding the limits of lateral deviation shown on the deposited plans and where on any road no such limits are shown the boundaries of such roads shall be deemed to be such limits and they may also deviate vertically from the levels shown on the deposited sections to any extent not exceeding in the case of the service reservoir five feet upwards and to any extent downwards and in the case of other works five feet upwards and ten feet downwards Provided that no deviation either lateral or vertical shall be made below high-water mark without the consent in writing of the Board of Trade.

Power to
take waters.

20. Subject to the provisions and for the purposes of this Act the Council may collect take use divert and appropriate for the purposes of the water undertaking all such springs and waters as are or may be found in under or upon any of the lands acquired by the Council under the authority of this Act.

Council may
acquire ease-
ments only
in certain
cases.

21.—(1) The Council may in lieu of acquiring any lands for the purposes of the works authorised by this Act to be made where the same are intended to be laid underground acquire such easements only in such lands as they may require for such purposes and may give notice to treat in respect of such

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easements describing the nature thereof and the provisions of the Lands Clauses Acts shall apply to and in respect of the acquisition of such easements as fully as if the same were lands within the meaning of those Acts. A.D. 1911.

(2) As regards any lands in respect of which the Council have acquired easements only under the provisions of this section the Council shall not be required or entitled to fence off or sever such lands from the adjoining lands but the owners or occupiers for the time being shall subject to such easements have the same rights to use and cultivate the said lands at all times as if this Act had not been passed.

(3) Provided always that nothing in this section contained shall authorise the Council to acquire by compulsion any such easement in any case in which the owner in his particulars of claim shall require the Council to acquire the lands in respect of which they have given notice to treat for the acquisition of an easement only and every notice to treat for the acquisition of an easement shall be endorsed with notice of this provision.

22. Subject to the provisions of this Act the Council may purchase and take and hold for the purposes of the water undertaking the lands springs waters rights and easements hereinafter mentioned and held by the company on lease from His Grace the Duke of Beaufort (that is to say):—

Purchase of sites of existing pumping stations and easements for certain lines of pipes.

- (A) The lands forming the sites of the existing pumping stations of the company at Caswell Bay being the lands delineated on the deposited plans and described in the deposited book of reference and numbered 2 in the parish of Bishopston together with all springs and waters thereon and thereunder;
- (B) The easement for maintaining and repairing the existing line of pipes from Redlay Springs to the existing pumping stations in through or under the lands delineated on the deposited plans and described in the deposited book of reference and numbered 5 in the parish of Bishopston; and
- (C) The easements for maintaining and repairing the existing lines of pipes from the said pumping stations to the rising main in the public road leading from Caswell Bay to Oystermouth in through or under the lands delineated on the deposited plans and described in the

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deposited book of reference and numbered 1 and 5 in the parish of Bishopston and 7 and 8 in the parish of Oystermouth.

The Council may give notice to treat in respect of the easements above described and the provisions of the Lands Clauses Acts shall apply to and in respect of the acquisition of such easements as fully as if the same were lands within the meaning of those Acts.

Period for compulsory purchase of lands.

23. The powers of the Council for the compulsory purchase of lands and easements under this Act shall not be exercised after the expiration of three years from the passing of this Act.

Power to purchase additional lands by agreement.

24. The Council in addition to any other lands acquired by them in pursuance of this Act may by agreement purchase take on lease acquire and hold further lands for the purposes of this Act but the quantity of lands held by the Council in pursuance of this section shall not at any time exceed five acres Provided that the Council shall not create or permit the creation or continuance of any nuisance on any such lands nor erect any buildings thereon except such buildings and works as may be incident to or connected with the water undertaking.

Persons under disability may grant easements &c.

25. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Council any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Power to hold lands for protection of waterworks.

26. The Council may hold any lands acquired by them under the powers of this Act which they may deem necessary for the purpose of protecting their waterworks against pollution fouling and contamination and so long as such necessity shall continue such lands shall not be deemed to be superfluous lands within the meaning of this Act or the Lands Clauses Acts respectively but the Council shall not create or permit a

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nuisance on any such lands and shall not erect any buildings thereon other than offices and dwellings for persons in their employ and such buildings and works as may be incident to or connected with the water undertaking. A.D. 1911.

27. The Council on selling any lands acquired by them in connection with the water undertaking and not required for the purposes of that undertaking may reserve to themselves all or any part of the water rights or other easements belonging thereto and may make the sale subject to such reservations accordingly and may also make any such sale subject to such other reservations special conditions restrictions and provisions with respect to the use of water exercise of noxious trades or discharge or deposit of manure sewage or other impure matter and otherwise as they may think fit. Reservation of water rights &c. on sale.

28. The Council may make and carry into effect agreements with the owners lessees or occupiers of any lands from through or under which any water may flow or percolate directly or derivatively into any spring well adit or other work of the Council with reference to the execution by the Council or such owners lessees or occupiers of such works as may be necessary for the purpose of draining such lands or any of them or for more effectually collecting conveying and preserving the purity of the waters so flowing or percolating. Power to agree as to drainage of lands &c.

29. The Council shall not construct any works for taking or intercepting water from any lands acquired by them unless the works are authorised by and the lands upon which the same are to be constructed are specified in this or some other Act of Parliament. Limiting powers of Council to abstract water.

30.—(1) The Council may make byelaws for preventing the pollution fouling or contamination of the water which they are authorised to take for the purposes of any of their waterworks and may by such byelaws prescribe the construction maintenance and use of proper drains sewers and works and make provision for the prevention of any act or thing tending to pollution of the water. Byelaws for preventing pollution of water.

(2) The byelaws made under this section shall be in force within the areas from or through which the said waters flow or within so much of those areas as may be defined in the byelaws.

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(3) The provisions with respect to byelaws to be made by an urban authority contained in sections 182 to 186 of the Public Health Act 1875 shall apply to byelaws made by the Council under this section.

(4) All byelaws made under this section shall be subject to the approval of the Council of every district comprising any part of the area within which it is proposed that they shall be in force. Provided that such approval shall not be necessary where in the opinion of the Local Government Board it has been unreasonably withheld.

(5) The Council shall pay compensation to the owners of and other persons interested in any lands in respect of which byelaws shall be made under the provisions of this section whose legal rights shall be injuriously affected by the restrictions imposed by such byelaws and such compensation shall be settled in default of agreement by arbitration in accordance with the provisions of the Arbitration Act 1889.

Temporary
discharge of
water into
streams.

31.—(1) For the purpose of enlarging extending repairing cleansing or examining any conduit or line of pipes or tank or reservoir acquired or constructed by the Council under the powers of this Act the Council may cause the water in such conduit or line of pipes or tank or reservoir to be temporarily discharged into any available stream or watercourse.

(2) In the exercise of the power conferred by this section the Council shall do as little damage as may be and shall pay compensation to all persons for all damage sustained by them by the exercise of such power the amount of compensation to be settled in default of agreement by arbitration in accordance with the provisions of the Arbitration Act 1889.

SUPPLY OF WATER.

Rates for
supply of
water for
domestic
purposes.

32. The Council shall at the request of the owner or occupier of any dwelling-house or part of a dwelling-house entitled under the provisions of this Act to demand a supply of water for domestic purposes furnish to such owner or occupier a sufficient supply of water for such domestic purposes at rates not exceeding the rates per annum hereinafter specified (that is to say):—

Where the rateable value of the premises so supplied with water does not exceed five pounds per annum the sum of eight shillings and eightpence:

Where the rateable value exceeds five pounds but does not exceed seven pounds per annum the sum of ten shillings: A.D. 1911.

Where the rateable value exceeds seven pounds but does not exceed ten pounds per annum the sum of twelve shillings:

Where the rateable value exceeds ten pounds at a rate per annum not exceeding seven per centum of such rateable value.

The rateable value of any such premises as aforesaid shall be ascertained by the valuation list in force at the commencement of the quarter for which the rate accrues or if there is no such list in force by the last rate made for the relief of the poor. Provided that where the water rate is chargeable on the rateable value of a part only of any hereditament entered in the valuation list such rateable value shall be a fairly apportioned part of the rateable value of the whole tenement ascertained as aforesaid the apportionment in case of dispute to be ascertained by a court of summary jurisdiction.

In addition to the foregoing charges the Council may charge in respect of every watercloset beyond the first (for which no additional charge shall be made) on any premises within the limits of supply a sum not exceeding five shillings per annum and for every fixed bath capable of containing not more than fifty gallons a sum not exceeding seven shillings and sixpence per annum and for every fixed bath capable of containing more than fifty gallons such sum as the Council may think fit such additional sum to be paid quarterly in advance and to be recoverable in all respects with and as the water rate.

33. Where a house supplied with water is let to monthly or weekly tenants or tenants holding for any other period less than a quarter of a year the owner instead of the occupier shall if the Council so determine pay the rate for the supply but the rate may be recovered from the occupier and may be deducted by him from the rent from time to time due from him to the owner. Provided that no greater sum shall be recovered at any one time from any such occupier than the amount of rent owing by him or which shall have accrued due from him subsequent to the service upon him of a notice to pay the rate.

Rates payable by owners of small houses.

34. The Council shall not be bound to supply more than one house by means of the same communication pipe and they may if they think fit require that a separate pipe be laid from the main pipe into each house supplied by them with water.

Council not bound to supply several houses by one pipe.

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Notice of discontinuance.

35. A notice to the Council from a consumer for the discontinuance of a supply of water shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Council.

Byelaws for preventing waste &c. of water.

36.--(1) The Council may make byelaws for the purpose of preventing the waste undue consumption misuse or contamination of water and may by such byelaws prescribe the size nature materials workmanship and strength and the mode of arrangement connection disconnection alteration and repair of fittings to be used and forbid any arrangements and the use of any fittings which may allow or tend to waste undue consumption misuse erroneous measurement or contamination.

(2) Such byelaws shall apply only in the case of premises to which the Council are bound to afford and do in fact afford or are prepared on demand to afford a constant supply and the provisions with respect to byelaws contained in sections 182 to 186 of the Public Health Act 1875 shall apply to such byelaws.

(3) In case of failure of any person to observe such byelaws as are for the time being in force the Council may if they think fit after twenty-four hours' notice in writing enter and by and under the direction of their duly authorised officer repair replace or alter any fittings belonging to or used by such person and not being in accordance with the requirements of such byelaws and the expense of every such repair replacement or alteration shall be recoverable by the Council as the water rates in respect of the premises are recoverable.

Supply by measure.

37. The Council may supply water for other than domestic purposes on such terms and conditions as the Council think fit and may supply water by measure either for domestic or other purposes and the moneys payable for the supply of water under this section shall be recoverable in the same manner as water rates Provided always that no person shall be entitled to a supply of water for other than domestic purposes if such supply would interfere with the sufficiency of the supply of water for domestic purposes.

Supply to houses partly used for trade &c.

38. The Council shall not be bound to supply with water otherwise than by measure any building used by an occupier as a dwelling-house whereof any part is used by the same occupier for any trade or manufacturing purpose for which water is required.

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39. The price to be charged for a supply of water by measure shall not exceed one shilling and sixpence per thousand gallons.

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Price of
supply by
measure.

40. The water supplied by the Council need not at any time be delivered at a greater height than can be reached by gravitation from the service reservoir or tank from which the supply is taken nor need the water be constantly laid on under pressure until the works by this Act authorised are constructed.

Limit of
pressure.

41. Before any person connects or disconnects any meter by means of which any of the water of the Council is intended to be or has been registered he shall give not less than twenty-four hours' notice in writing to the Council of his intention to do so and all alterations or repairs and the connecting and disconnecting of meters shall be done at his cost and under due superintendence of any officer of or person authorised by the Council and any person offending against this enactment shall for every such offence be liable to a penalty not exceeding forty shillings.

Notice to
Council of
connecting or
disconnect-
ing meters.

42.—(1) Every person who wilfully fraudulently or by culpable negligence injures or suffers to be injured any pipe meter or other instrument for measuring water or any fittings belonging to the Council or who fraudulently alters the index to any meter or other instrument for measuring water or prevents any meter or other instrument for measuring water from duly registering the quantity of water supplied or fraudulently abstracts consumes or uses water of the Council shall (without prejudice to any other right or remedy for the protection of the Council) be liable to a fine not exceeding five pounds and the Council may in addition thereto recover the amount of any damage by them sustained.

Injuring
meters &c.

(2) In any case in which any person has wilfully fraudulently or by culpable negligence injured or suffered to be injured any pipe meter instrument or fittings belonging to the Council or has fraudulently altered the index to any meter or other instrument for measuring water or prevented the same from duly registering the quantity of water supplied or has fraudulently abstracted consumed or used the water of the Council the Council may also enter upon the premises occupied by the offender and repair such injury and do all such works matters and things as may be necessary for insuring the proper registering by such meter of the quantity of water supplied by means thereof and the

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(*Water*) Act, 1911.

A.D. 1911. — expense of such repair and of all such works matters and things shall be repaid to the Council by the person so offending and may be recovered by them as water rates are recoverable. The existence of artificial means for causing such injury alteration or prevention or for abstracting consuming or using water of the Council when such pipe meter instrument or fittings is or are under the custody or control of the consumer shall be *prima facie* evidence that such injury alteration prevention abstraction consumption or use as the case may be has been fraudulently knowingly and wilfully caused by the consumer using such pipe meter instrument or fittings.

Power to
supply fit-
tings.

43.—(1) The Council may if requested by any person supplied or about to be supplied by them with water furnish to him and repair or alter but shall not manufacture any such fittings as are required or permitted by their regulations and may provide all materials and work necessary or proper in that behalf and the reasonable charges of the Council in providing such materials and executing such work shall be paid by the person requiring the same.

(2) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under any process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be. Provided that such fittings have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Council as the actual owners thereof:

Provided as follows:—

(A) The Council shall so adjust the charges to be made by them for any such fittings or for the fixing repairing or removal thereof as to meet any expenditure by them under the powers of this section in connection therewith (including interest upon any moneys borrowed for those purposes and all sums applied to sinking fund for repayment of moneys so borrowed);

(B) Every sum charged by the Council in respect of provision of such fittings or repairing the fixing or removal thereof shall be clearly stated in every

demand note delivered by the Council to the consumer; A.D. 1911.

- (c) The total sums expended and received by the Council in connection with the purposes in this section mentioned in each year (including interest and sinking fund) shall be separately shown in the published accounts of the water undertaking for such year.

44. The Council may on the application of the owner or occupier of any premises within the limits of supply abutting on or being erected in any street laid out but not dedicated to the public use supply such premises with water and for that purpose the Waterworks Clauses Acts 1847 and 1863 shall apply as if the street were a street within the meaning of those Acts. Power to lay pipes in streets not dedicated to public use.

45. The Council may enter into and carry into effect agreements with any local authority company or persons for the supply of water beyond the limits of supply to any such authority company or persons respectively in bulk for any purpose and for such remuneration and on such terms and conditions and for such period as may be agreed upon. Provided that such supply shall not be given except with the consent of any local authority company or person supplying water under Parliamentary authority within the area to be supplied nor if and so long as such supply would interfere with the supply of water for domestic purposes within the limits of supply. Contracts for supplying water in bulk.

46.—(1) The Council may enter into and carry into effect agreements with the mayor aldermen and burgesses of the borough of Swansea and with any other local authority water board company or persons able and willing to supply water in bulk for the supply of water to the Council in bulk for the purposes of the water undertaking for such remuneration and on such terms and conditions and for such period as may be agreed upon. Power to take water in bulk from Swansea Corporation and other bodies.

(2) For the purposes of enabling the Council to take a supply of water under this section the Council shall have and may exercise any of the powers of the Public Health Acts in regard to the construction and maintenance of waterworks (including the powers of a local authority for carrying water mains without their district) and the purposes of this section shall be deemed to be purposes of those Acts.

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(*Water*) Act, 1911.

A.D. 1911.

FINANCE.

Power to
borrow.

47.—(1) The Council may independently of any other borrowing power borrow at interest money for the following purposes (that is to say):—

- (A) For the purchase of the undertaking of the Company and for defraying the costs and expenses incident to such purchase and to the transfer thereof to the Council (other than the costs of this Act) such sums as may be necessary;
- (B) For the purchase of lands and easements for the water-works and for the construction of the service reservoir and conduits by this Act authorised the sum of four thousand six hundred and fifty pounds;
- (C) For the extension and improvement by the Council of the water undertaking the sum of two thousand eight hundred pounds;
- (D) For the supply of fittings and working capital the sum of one thousand pounds; and
- (E) For paying the costs and expenses of this Act the sum requisite for that purpose;

and with the approval of the Local Government Board such further moneys as the Council may require for any of the purposes of this Act or otherwise in relation to the water undertaking.

(2) In order to secure the repayment of the moneys borrowed under this section and the payment of the interest thereon the Council may mortgage or charge the revenue of the water undertaking and if they think fit as a collateral security the district fund and general district rate.

Section 234
of Public
Health Act
not to apply.

48. The powers of borrowing money by this Act given shall not be restricted by any of the regulations contained in section 234 of the Public Health Act 1875 and in calculating the amount which the Council may borrow under that Act any sums which they may borrow under this Act shall not be reckoned.

Method of
raising
money.

49. The Council may raise all or any moneys which they are authorised to borrow under this Act by mortgage or by the issue of debentures under and subject to the provisions of the

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(*Water*) Act, 1911.

Local Loans Act 1875 or partly in one way and partly in another A.D. 1911.
Provided that the provisions contained in the section of this Act
whereof the marginal note is "Sinking fund" shall apply to
sinking funds formed for the repayment of moneys borrowed
under the Local Loans Act 1875 instead of the provisions of
section 15 of that Act.

50. The following sections of the Public Health Act 1875 shall extend and apply to mortgages granted under this Act (that is to say):—

Provisions
of Public
Health Act
as to mort-
gages to
apply.

Section 236 (Form of mortgage);

Section 237 (Register of mortgages);

Section 238 (Transfer of mortgages);

Section 239 (Receiver may be appointed in certain cases).

51. The Council shall pay off all moneys borrowed by them under this Act within the respective periods (in this Act referred to severally as "the prescribed period") following (that is to say):—

Periods for
repayment
of money
borrowed.

As to moneys borrowed for the purposes (A) mentioned in the section of this Act the marginal note whereof is "Power to borrow" within fifty years from the date or dates of borrowing the same;

As to moneys borrowed for the purposes (B) in the said section mentioned within sixty years from the date or dates of borrowing the same;

As to moneys borrowed for the purposes (C) in the said section mentioned within thirty years from the date or dates of borrowing the same;

As to moneys borrowed for the purposes (D) in the said section mentioned within ten years from the date or dates of borrowing the same;

As to moneys borrowed for the purpose (E) in the said section mentioned within five years from the date of the passing of this Act;

As to moneys borrowed with the approval of the Local Government Board within such period not exceeding sixty years as that Board may think fit to sanction.

52. The Council shall pay off all moneys borrowed by them on mortgage under the powers of this Act either by equal yearly or half-yearly instalments of principal or of principal and interest

Method of
payment off
of money
borrowed.

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(*Water*) Act, 1911.

A.D. 1911. combined or by means of a sinking fund or partly by such instalments and partly by a sinking fund and the payment of the first instalment or the first payment to the sinking fund shall be made within twelve months if by yearly repayments or within six months if by half-yearly repayments from the time of borrowing the sum in respect of which the payment is made.

Sinking
fund.

53.—(1) If the Council determine to repay by means of a sinking fund any moneys borrowed by virtue of this Act such sinking fund shall be formed and maintained either—

(A) By payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed. A sinking fund so formed is hereinafter called a “non-accumulating sinking fund”; or

(B) By payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding three per centum per annum will be sufficient to pay off within the prescribed period the moneys for the repayment of which such sinking fund is formed. A sinking fund so formed is hereinafter called an “accumulating sinking fund.”

(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in statutory securities the Council being at liberty from time to time to vary and transpose such investments.

(3) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Council towards the equal annual payments to the fund.

(4) The Council may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed. Provided that in the case of an accumulating sinking fund the Council shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by such sinking fund so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(5)—(a) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the equal annual payments to the fund are based any deficiency shall be made good by the Council : A.D. 1911.

(b) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the equal annual payments to the fund are based any such excess may be applied towards such equal annual payments.

(6) Any expenses connected with the formation maintenance investment application management or otherwise of any sinking fund under this Act shall be paid by the Council in addition to the payments provided for by this Act.

(7) If it appears to the Council at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Act together with the accumulations thereon (in the case of an accumulating sinking fund) will probably not be sufficient to repay within the prescribed periods the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Council to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose Provided that when it appears to the Local Government Board that any such increase is necessary the Council shall increase the payments to such extent as the Board may direct.

(8) If the Council desire to accelerate the payment of any loan they may increase the amounts payable to any sinking fund.

(9) If the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Act together with the accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government Board be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Council may reduce the payments to be made to the sinking fund either temporarily or permanently to such an extent as the Local Government Board shall approve.

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A.D. 1911.

(10) If the amount in any sinking fund at any time together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government Board be sufficient to repay the loan in respect of which it is formed within the prescribed period the Council may with the consent of that board discontinue the equal annual payments to such sinking fund until the Local Government Board shall otherwise direct.

(11) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose as the Council with the consent of the Local Government Board may determine.

Protection of
lender from
inquiry.

54. A person lending money to the Council under this Act shall not be bound to inquire as to the observance by them of any provisions of this Act or be bound to see to the application or be answerable for any loss mis-application or non-application of the money lent or of any part thereof.

Council not
to regard
trusts.

55. The Council shall not be bound to see to the execution of any trust whether expressed implied or constructive to which any loan or security for loan given by them may be subject but the receipt of the person in whose name any loan or security for loan stands in the register of mortgages of the Council shall be sufficient discharge to the Council in respect thereof notwithstanding any trusts to which such loan or security may be subject and whether or not the Council have had express or implied notice of any such trust or of any charge or incumbrance upon or transfer of such loan or security or any part thereof or any interest thereon not entered in their register.

Power to
re-borrow.

56.—(1) The Council shall have power (a) to borrow for the purpose of paying off any moneys previously borrowed under this Act which are intended to be forthwith repaid or (b) to borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Council in repaying moneys previously borrowed under this Act and which at the time of such repayment it was intended to replace by borrowed moneys.

(2) Any moneys borrowed under this section shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the prescribed period which remains unexpired and the provisions which are

for the time being applicable to the original loan shall apply to the moneys borrowed under this section. A.D. 1911.

(3) The Council shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Council shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid (a) by instalments or annual payments or (b) by means of a sinking fund or (c) out of moneys derived from the sale of land or (d) out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

57.—(1) The clerk to the Council shall within twenty-one days after the thirty-first day of March in each year if during the twelve months next preceding the said thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in pursuance of the provisions of this Act or in respect of any money raised thereunder and at any other time when the Local Government Board may require such a return to be made transmit to the Local Government Board a return in such form as may be prescribed by that Board and if required by that Board verified by statutory declaration of the clerk to the Council showing for the year next preceding the making of such return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of his failing to make such return the clerk to the Council shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of such penalty the making of the return shall be enforceable

Return to
Local Go-
vernment
Board as to
repayment
of debt.

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A.D. 1911. by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

(2) If it appears to the Local Government Board by that return or otherwise that the Council have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by this Act or by the Local Government Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purposes other than those authorised the Local Government Board may by order direct that the sum in such order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as in such order mentioned and any such order shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

Application
of money
borrowed.

58. Moneys borrowed or raised by the Council under this Act shall be applied only to the several purposes in respect of which they are respectively authorised to be borrowed or raised and to which capital is properly applicable.

Proceeds of
sale of sur-
plus lands.

59. The proceeds of the sale of any lands or other property of the Council and any other moneys received on capital account under the powers of this Act and the fines and premiums on any leases granted by the Council under this Act shall be distinguished as capital in the accounts of the Council and shall be applied in discharge of any moneys borrowed by the Council under this Act to which such capital moneys would be properly applicable or if there shall be no moneys owing under this Act such proceeds shall be applied in or towards paying off any other moneys for the time being owing by the Council but shall not be applied to the payments of instalments or to payments into the sinking fund except to such extent and upon such terms as may be approved by the Local Government Board and borrowed money discharged by the application of such sums shall not be re-borrowed.

Council to keep
separate ac-
counts of water
undertaking.

60. The Council shall keep separate accounts of their receipts and expenditure for waterworks purposes on capital and revenue account.

61. The Council shall apply all moneys received by them in respect of the water undertaking except money borrowed and money received from the sale of lands or other property or other moneys received on capital account as follows (that is to say) :—

A.D. 1911.

Application
of revenue of
water under-
taking.

- (First) In payment of the working and establishment expenses and cost of maintenance of the water undertaking;
- (Secondly) In payment of the interest on moneys borrowed by the Council for the purposes of the water undertaking;
- (Thirdly) In providing the requisite appropriations instalments or sinking fund payments in respect of moneys borrowed by the Council for the purposes of the water undertaking;
- (Fourthly) In extending improving and constructing (if the Council think fit) any works for the purposes of the water undertaking;
- (Fifthly) In providing a reserve fund (if the Council think fit) by setting aside such money as they think reasonable and investing the same and the resulting income thereof in statutory securities and accumulating the same at compound interest until the fund so formed amounts to one fifth of the aggregate capital expenditure for the time being upon the water undertaking which fund shall be applicable to answer any deficiency at any time happening in the income of the Council from the water undertaking or to meet any extraordinary claim or demand at any time arising against the Council in respect of the water undertaking and so that if that fund be at any time reduced it may thereafter be again restored to the prescribed limit and so from time to time as often as such reduction happens. Provided that resort may be had to the reserve fund under the foregoing provisions although such fund may not at the time have reached or may have been reduced below the full amount of one fifth of the said aggregate capital expenditure:

And the Council shall carry to the district fund so much of any balance remaining in any year of the income of the water undertaking (including the interest on the reserve fund when such fund amounts to one fifth of the said aggregate capital expenditure) as may in the opinion of the Council not be required for carrying on

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A.D. 1911. improving or extending the water undertaking and paying the current expenses connected therewith.

As to deficiency in receipts.

62. Any deficiency in the revenues or receipts of the Council on account of the water undertaking shall be made good out of the district fund and the next general district rate to be made by the Council shall be increased so far as may be necessary to recoup to the district fund the amount so made good out of that fund.

MISCELLANEOUS.

Audit of accounts.

63. Section 58 of the Local Government Act 1894 shall apply to the accounts of the Council and their committees and officers under this Act and to the audit of such accounts.

Informations by whom to be laid.

64. Save as herein expressly provided all informations and complaints under or for the breach of any of the provisions of this Act or of any byelaws made hereunder may be laid and made by an officer of the Council authorised in that behalf or by the clerk.

Evidence of appointments authority &c.

65. Where in any legal proceedings taken by or on behalf of the Council under this Act it becomes necessary to prove the appointment or authority of any officer servant solicitor or agent of the Council or of any committee of the Council or to prove any resolution of the Council or of any committee of the Council a certificate of such appointment authority or resolution purporting to be authenticated by the signature of the chairman of the Council or the clerk shall be *prima facie* evidence of such appointment authority or resolution without further proof of the holding of any meeting or the production of any minute book or other record or document.

Authentication and service of notices &c.

66.—(1) Where any notice or demand under this Act requires authentication by the Council the signature of the clerk or other duly authorised officer of the Council shall be sufficient authentication.

(2) Notices demands orders and other documents required or authorised to be served under this Act may be served in the same manner as notices under the Public Health Act 1875 are by section 267 of that Act authorised to be served Provided that in the case of any company any such notice demand order or document shall be delivered or sent by post addressed to the secretary of the company at their principal office or place of business.

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67. All penalties recovered by the Council or other officer of the Council on their behalf whether under this Act or any byelaw hereunder shall be paid to the treasurer of the Council and subject to the provisions of the Police Act 1890 shall be carried by him to the credit of the district fund or to such other fund as the Council direct.

A.D. 1911.
Penalties to be paid over to treasurer.

68. Proceedings for the recovery of any demand made under the authority of this Act or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action.

Recovery of demands.

69. A judge of any court or a justice shall not be disqualified from acting in the execution of this Act by reason of his being liable to any rate.

Judges &c. not disqualified.

70.—(1) The Local Government Board may direct any inquiries to be held by their inspectors which they may deem necessary for giving effect to any of the provisions of this Act and the inspectors of the Local Government Board shall for the purposes of any such inquiry have all such powers as they have for the purposes of inquiries directed by that Board under the Public Health Act 1875.

Power to Local Government Board to direct inquiries.

(2) The Council shall pay to the Local Government Board any expenses incurred by that Board in relation to any inquiries under this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by that Board not exceeding three guineas a day for the services of such inspector.

71.—(1) Section 30 of the Waterworks Clauses Act 1847 incorporated with this Act shall in relation to any main road county bridge or road repairable with a county bridge within the county of Glamorgan have effect as if the word "seven" were substituted for the word "three" in that section.

As to breaking up and reinstatement of main roads in county of Glamorgan.

(2) Whenever the Council in the exercise of their statutory powers shall have opened or broken up any road maintainable by the Glamorgan County Council (hereinafter referred to as "the county council") they shall reinstate and make good such road to the satisfaction of the county council and for that

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A.D. 1911. purpose section 32 of the Waterworks Clauses Act 1847 shall have effect as if the reinstatement and making good of the road required by that section included the application of a sufficient layer of surface metalling of the same specification as that employed by the county council for the particular road and also included the use of a steam roller on the places where the road has been broken up until the surface thereof has been made uniform with the unbroken surface adjoining.

(3) If for the purpose of repairing altering diverting or widening any main road or bridge maintainable by the county council or of rebuilding any such bridge the county council require any alteration either temporary or permanent in the position of any mains pipes or other works of the Council or any support to be given thereto the Council shall at their own expense on receiving notice in writing under the hand of the clerk or surveyor of the county council so to do alter or support any such works in the manner required by such notice and with all due expedition and if the Council shall neglect to do or complete any work or act required by such notice then and in any such case the county council may do such work or act causing as little damage or inconvenience to the Council as the circumstances may admit and the Council shall repay to the county council the necessary expenses incurred by the county council in relation to any such work or act.

Differences
with road
authorities
or railway or
other com-
panies.

72. If any difference arise between the Council and any road authority or railway canal or other company whose lands or works the Council have power to cross under the authority of this Act as to the mode of laying down repairing altering or enlarging their mains pipes or other works in over or upon such lands or works or the facilities to be afforded for the same such difference shall be settled by an engineer or other fit person to be appointed by the Board of Trade at the request of either party.

Works below
high-water
mark not
to be com-
menced
without
consent of
Board of
Trade.

73. The Council shall not under the powers of this Act construct on the shore of the sea or of any creek bay arm of the sea or navigable river communicating therewith where and so far up the same as the tide flows and reflows any work without the previous consent of the Board of Trade to be signified in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade and then only

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according to such plan and under such restrictions and regulations as the Board of Trade may approve of such approval being signified as last aforesaid and where any such work may have been constructed the Council shall not at any time alter or extend the same without obtaining previously to making any such alteration or extension the like consents or approvals. If any such work be commenced or completed contrary to the provisions of this section the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the costs and charges of the Council and the amount of such costs and charges shall be a debt due from the Council to the Crown and shall be recoverable as a Crown debt or summarily.

A.D. 1911.

74. The costs charges and expenses preliminary to and of and incidental to obtaining this Act or otherwise in relation thereto shall after taxation by the taxing officer of the House of Lords or of the House of Commons be paid by the Council in the first instance out of the district fund and general district rate and ultimately may be paid out of moneys borrowed by the Council for that purpose under the authority of this Act.

Expenses of
Act.

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